

VCU301267 Moreno, Jose vs. Pena's Disposal, Inc.

County: tulare

Division: Civil Law and Motion

Department: 9

Hearing date: 2026-08-10

Motion: Continued Motion for Preliminary Approval of Clas Action and PAGA Settlement

Source URL: <https://www.tulare.courts.ca.gov/general-information/tentative-rulings>

Source SHA-256: ad026f3a231237a116b332b899e2df0ad44b2466901392036a1b0c68adb5deb0

Re: Moreno, Jose vs. Pena's Disposal, Inc.

Case No.: VCU301267

Date: August 10, 2026

Time: 8:30 A.M.

Dept. 9-The Honorable Nathan D. Ide

Motion: Continued Motion for Preliminary Approval of Clas Action and PAGA Settlement

Tentative Ruling: To grant the motion; to set the motion for final approval for March 15, 2027, 8:30 am, Department 9.

Attorneys' Fees and Costs

Attorneys' fees of 33.3% of the gross settlement fund of \$400,000 or \$133,333.33 and costs not to exceed \$35,000 are sought by Plaintiff's counsel.

Counsel has utilized the percentage of common fund methodology as well as provided adequate lodestar information to evaluate the reasonableness of the fee request.

Here, Counsel indicates that the firm has spent 189.8 hours at rates ranging from \$950 to \$450 per hour totaling a lodestar of \$135,935.00, resulting in a negative multiplier of .98. (Supplemental Declaration of Khaled ¶3.)

Therefore, the fees requested are preliminarily approved

Counsel previously indicated presently incurred costs of \$24,213.49 and the Court approves costs not to exceed \$35,000. (Initial Declaration of Khaled ¶38.)

Accordingly, the motion to preliminarily approve the Class Action and PAGA settlement is granted. Plaintiff's deductions from the gross settlement of \$400,000 are preliminarily approved as follows:

Preliminarily Approved Attorney Fees (33.3%):

\$133,333.33

Preliminarily Approved Attorney Costs (up to):

\$35,000.00

Preliminarily Approved Enhancement Payment to Plaintiff :

\$5,000.00

Preliminarily Approved Settlement Administrator Costs

\$6,700.00

Preliminarily Approved Total PAGA Payment:

\$40,000.00

Preliminarily Approved Net Settlement Amount

\$179,966.67

Motion for final approval is set for March 15, 2027 8:30 am, Department 9.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.